

quest of the legal estate, and there is no ground for the inference that he meant to dispose of the equitable; and,

ward; *Crutcher v. Taylor*, 66 Ala. 217. A trust may result to the husband as well as to the wife; *Harden v. Darwin*, 66 Ala. 55; *Gogherty v. Bennett*, 37 N. J. Eq. 87; if a widow purchase in her own name with estate funds a trust results to the children; *Musham v. Musham*, 87 Ill. 80; *Fox v. Doherty*, 30 Ia. 334; or a father with funds of his children; *Robinson v. Robinson*, 22 Ia. 427. A trust results if the husband purchase with the savings of the wife's separate property, but not if from an allowance made by him; *Merrill v. Smith*, 37 Me. 394; *Farley v. Blood*, 10 Foster, 354; it is not at all necessary, however, that any fiduciary relation should exist; *Beck v. Uhrich*, 13 Pa. St. 636; 53 Am. Dec. 507.

*Following funds.*—It is sufficient if the general character of the fund can be identified; *United States v. Waterborough*, Davies, 154; *Overseers v. Bank*, 2 Gratt. 544; and they can be followed so long as definitely traceable; *Moore v. Stinson*, 144 Mass. 594; *In re Youngs*, 5 Dema. (N. Y.) 141; *Allen v. Russell*, 78 Ky. 105; *East v. McPherson*, 98 Ill. 406; *McGivney v. McGivney*, 142 Mass. 156; see also *Hunter v. Yarrowborough*, 92 N. C. 68; *Mason v. Commerce Bank*, 16 Mo. App. 275. If funds cannot be followed in hands of executor, legatees have no preference; *Thompson's App.* 22 Pa. St. 16. Burden is on trustee to show how much he added, of his own, to trust estate; *Persch v. Quiggle*, 57 Pa. St. 247; *Seaman v. Cook*, 14 Ill. 505. No trust results if one appropriate the funds of one to whom he does not stand in a fiduciary relation; *Hawthorne v. Brown*, 3 Sneed, 462. It was held that no fiduciary relation existed in case of a clerk in a store; *Campbell v. Drake*, 4 Ired. 94; *Pascoag Bank v. Hunt*, 3 Edw. 583; but the opposite was held in the case of a bank clerk; *Bank of America v. Pollock*, 4 Edw. 215; *Riehl v. Foundry Asso.* 104 Ind. 70.

*Personal property.*—The same rules apply to personal property as to realty; *Creed v. Bank*, 1 Ohio St. 1; *Kelley v. Jenness*, 50 Me. 455; unless it be of a perishable nature; *Bank v. Baker*, 8 Humph. 447; *Guphill v. Isbell*, 1 Bailey's Law, 230; 19 Am. Dec. 675.

*No trust results, if contrary to statute or public policy, in case of title in one payment by another.*—2 Story Eq. Jur. § 1201; *Proseus v. McIntyre*, 5 Barb. 424; *Clos v. Boppe*, 23 N. J. Eq. 270; *Baldwin v. Campfield*, 4 Halst. 891; *Miller v. Davis*, 50 Mo. 572; a conveyance in fraud of creditors will not raise a trust for party seeking benefit; *Cutler v. Tuttle*, 19 N. J. Eq. 549; nor where an alien to avoid the law purchases in name of another; *Taylor v. Benham*, 5 How. 270; *Hubbard v. Goodwin*, 3 Leigh, 492; *Leggett v. Dubois*, 5 Paige, 114; 28 Am. Dec. 413; *Alsworth v. Cordtz*, 31 Miss. 32.

*Trust must result eo instanti.*—Payment or an obligation to pay must take place at the time of purchase, and no prior or subsequent payment will be sufficient, however clearly proven; 2 Pom. Eq. Jun. § 1037; *Brown v. Cave*, 23 S. C. 251; *Niver v. Crane*, 98 N. Y. 40; *Cross's App.* 97 Pa. St. 471; *Buck v. Pike*, 11 Me. 9; *Nixon's App.* 63 Pa. St. 282; *Botsford v. Burr*, 2 Johns. Ch. 408; *Page v. Page*, 8 N. H. 187; *White v. Carpenter*, 2 Paige, 218; *Jackson v. Moore*, 6 Cow. 706; *Gee v. Gee*, 2 Sneed, 395; *Kendall v. Mann*, 11 Allen, 15; *Barnard v. Jewett*, 97 Mass. 87; *Tunnard v. Littell*, 23 N. J. Eq. 264; *Gerry v. Stimson*, 60 Me. 186; if two agree to purchase, and one furnishes money and takes title, no trust results; *Fowke v. Slaughter*, 3 A. K. Marsh, 56; *Tebbetts v. Tilton*, 31 N. H. 273; there must be an actual payment, or the equivalent; *Dudley v. Bachelder*, 53 Me. 403; *Roberts v. Ware*, 40 Cal. 634; no